

Sangram Singh Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 February 2024 · 2024:AHC:17604-DB · Writ-C No. 2066 of 2024 · **Writ disposed; cl. 8.1 objection to be decided in 3 weeks; stay of disconnection**

HEADNOTE

A writ seeking mandamus to decide an objection to a theft notice after provisional assessment is disposed of by directing the licensee to decide the objection under Clause 8.1 of the Electricity Supply Code within three weeks of a certified copy being filed. Disconnection is stayed for four weeks or until that decision, whichever is earlier. Merits of the assessment are not examined.

FACTUAL SUMMARY

Sangram Singh Yadav petitioned the Allahabad High Court seeking a mandamus to the electricity licensee (respondent no. 4) to decide his objection dated 23 September 2023 seeking cancellation of a notice dated 22 September 2023. Counsel for the licensee submitted that the case was one of theft of electricity, that a provisional assessment had been made, and that the petitioner's representation would be decided under Clause 8.1 of the Electricity Supply Code.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

objection to theft notice after provisional assessment

HOLDING

Where a consumer objects to a theft-related notice after provisional assessment, the writ is disposed of by directing the licensee to decide that objection under Clause 8.1 of the Electricity Supply Code within three weeks of a certified copy being filed; disconnection is stayed for four weeks or until the objection is decided, whichever is earlier, without examining the merits of the assessment. ¶ 1

PRINCIPLE TAGS

opportunity-before-final-assessment A writ seeking mandamus to decide an objection to a theft notice after provisional assessment is disposed of by directing the licensee to decide the objection under Clause 8.1 of the Electricity Supply Code within three weeks of a certified copy being filed.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT ASSESSMENT AND OF THE OBJECTION DATED 23.9.2023

Left to the licensee to decide under Clause 8.1. ¶ 1